

Vijay Nath Pandey v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 23 May 2023 · 2023:AHC:112914-DB · WRIT - C No. 17590 of 2023 · **No interference; decide pending objections under the Supply Code.**

HEADNOTE

A writ against a notice of provisional assessment under Section 126 of the Electricity Act, 2003 is not entertained while the consumer's reply is still undecided. The respondents must decide those objections by following the procedure prescribed under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Vijay Nath Pandey filed a writ petition in the Allahabad High Court challenging a notice of provisional assessment dated 16 February 2023 issued by respondent no. 3 under Section 126 of the Electricity Act, 2003. The State of Uttar Pradesh and two others were the respondents. Before the hearing, the petitioner had already filed a reply to the notice, and that reply had not yet been decided. The petition sought interference with the provisional assessment notice while those objections remained pending.

HOLDING-UNITS

INTERPLAY · EA2003::126

provisional assessment notice

HOLDING

No case is made out to interfere with a notice of provisional assessment issued under Section 126 of the Electricity Act, 2003 when the consumer's reply to that notice is still pending. The respondents must decide the objections by following the procedure prescribed under the Electricity Supply Code, 2005. ¶ 2-3

PRINCIPLE TAGS

premature-writ-against-provisional-s126-assessment

The petitioner had already replied to the provisional assessment notice dated 16.02.2023 and that reply was still to be decided, so the Court declined to interfere with the notice and directed the respondents to decide the objections under the Electricity Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT NOTICE DATED 16.02.2023 WAS SUSTAINABLE ON MERITS

The objections were left to be decided by the respondents under the Electricity Supply Code, 2005. ¶ 2-3